

Stereo.HCJDA-38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Review Application No.12-C of 2021

Muhammad Faraz

vs.

Province of Punjab through District Collector Vehari and 2
others.

J U D G M E N T

Date of Hearing	18.3.2025
Applicant by	M/s Mian Abbas Ahmad and Kaiser Abbas Advocates
Respondent No.1 by	Mr. Kanwar Sajid Ali, Assistant Advocate General, Punjab.
Respondent No.2 by	Ch. Muhammad Riaz Jahania Advocate.
Respondent No.3	Nemo.

MALIK MUHAMMAD AWAIS KHALID, J. Through instant review application filed under section 114 of the Code of Civil Procedure, 1908, ‘(CPC)’ the applicant seeks review of the order dated 14.06.2021 passed by learned Single Judge- in-Chambers in civil revision, with the following prayer:-

“Under the afore-going facts and submissions, it is most respectfully prayed that instant review application may kindly be accepted and the impugned order dated 14.6.2021 may kindly be set aside to the extent of imposition of cost in the interest of justice”.

2. The applicant filed a suit for declaration before the learned Trial Court against the respondents No.1 & 2 on the basis of oral gift

alongwith application under Order XXXIX Rule 1 & 2 CPC. The said application was dismissed by learned Trial Court vide order dated 26.09.2018. Against the said order, applicant preferred an appeal before learned District Judge, Vehari, which also met with the same fate vide judgment dated 25.2.2019. Feeling aggrieved, applicant filed C.R. No.255 of 2019 whereby he called in question the order and judgment passed by the courts below. The said petition was dismissed by learned single Judge in Chambers vide order dated 14.6.2021 with cost of Rs.200,000/-, against which, this review application to the extent of imposition of cost of Rs.200,000/- has been preferred.

3. Learned counsel for the applicant started the arguments by submitting that cost has been imposed without any lawful justification and also requests that the same may be sent at Principal Seat where learned Single Judge in Chambers passed the order under review is presently gracing. Learned counsel for the applicant relied on the case of Shankar Ramchandra Abhyankar vs. Krishnaji Dattatraya Bapat (AIR 1970 Supreme Court 1) and Mian Asghar Ali Vs. Government of Panjab through Secretary (Colonies) BOR Lahore and others (2017 SCMR 118). In response to this,

learned counsel for respondent No.2 submits that as this review application is being heard by Division Bench, hence, there is no need to send it to Principal Seat. Further adds that there is series of previous litigation between the parties initiated by the applicant party including suit for specific performance titled *Tasleem Kausar Vs. Qaisar Mushtaq* which remained pending upto to Apex Court from 1999 to 2007, suit for declaration titled *Faraz Ahmad etc. Vs. Rabia Begum* remained pending from 2012 to 2016, suit for declaration titled *Faraz Ahmad etc. Vs. Rabia Begum* remained pending from 2014 to 2017, suit for specific performance titled *Muhammad Sheraz Vs. Rabia Begum* remained pending from 2015 to 2017 as well as three other independent suits for specific performance and one for permanent injunction. Apart from this, suit for declaration titled *Faraz Vs. Rabia Begum* was filed in 2018 which is pending till date and another suit for specific performance titled *Muhammad Shah Farid Vs. Rabia Begum etc.* was filed in 2021 and is still pending at District Vehari. The applicant's party entangled them in unnecessary litigation upto Apex Court for a long time, therefore, cost has been imposed quite in accordance with law. This Court has the jurisdiction

to impose cost while exercising its inherent power. He further submitted that review application has very limited scope under Section 114 of CPC and Order XLVII of CPC, hence, prays for dismissal of the review application.

4. We have heard the arguments of learned counsel for the parties and perused the available record.

5. In order to scrutinize the arguments of learned counsel for the applicant to refer it at Principal Seat, it is important to read the relevant provisions reproduced below:-

(I) RULES & ORDERS OF THE LAHORE HIGH COURT, LAHORE.

In this regard, High Court Rules and Orders Volume 5, Chapter 3 Part-B Rule 3 is relevant, which is reproduced as under:-

Hearing of review application. In cases not provided for by Order XLVII rule 5 of the Civil Procedure Code, an application for a review of a decree order shall be heard:-

- (a) If the decree or order, review of which is applied for, was passed by a Judge sitting alone, by a Bench of two or more Judges.
- (b) If the said decree or order was passed by a Bench of two or more Judges, by a Bench consisting of at least as

many Judge as the Bench review of whose decree or order is applied for.

whereas the other provision is **ORDER XLVII**

RULE (5) OF C.P.C. which is reproduced as under

for ready reference:-

“5.Application for review in Court consisting of two or more Judges. Where the Judge or Judges, or any one of the Judges, who passed the decree or made the order, a review of which is applied for, continues or continue attached to the Court at the time when the application for a review is presented, and is not or are not precluded by absence or other cause for a period of six months next after the application from considering the decree or order to which the application refers, such Judge or Judges or any of them shall hear the application, and no other Judge or Judges of the Court shall hear the same”.

It has been observed from the above text if the Judge who decided a case is not available, another Bench comprising two Judges can hear and dispose of a review petition arising from the judgment. Hence, this Court can entertain and hear instant review application and also after taking guidance from the case of Shabbir Ahmad and another Vs. Akhtar Alam and others (PLD 1994 Supreme Court 598), Mian Asghar Ali Vs. Government of Punjab through Secretary (Colonies) BOR, Lahore and others (2017 SCMR 118) and Akhtar Alam and 3 others Vs. Shabbir And 5 others (1994 MLD 201).

6. The applicant submitted that cost cannot be imposed through impugned order. Appellate and

Review Jurisdiction are two separate and distinct jurisdictions regulated and governed with concomitant limitation prescribed by law. It is settled law that points already raised and considered before the court cannot be re-agitated in review jurisdiction.

7. **Cost** defines in **Advanced Law Lexicon Dictionary:-**

“Costs. In the prosecution and defence of actions, the parties are necessarily put to certain expenses, or as they are commonly called costs; consisting of money paid to the Government for stamp duties to the officers of the Courts; and to the counsel and attornies for their fees, etc. (Tomlin)

Costs are certain allowances authorized by statute to reimburse the successful party for expenses incurred in prosecuting or defending an action or special proceeding. There are in the nature of incidental damages allowed to indemnify a party against the expense of successfully asserting his rights in Court. The theory upon which they are allowed to a plaintiff is that the default of the defendant made it necessary to sue him, and to a defendant, that the plaintiff sued him without cause. Thus the party to blame pays costs to the party without a fault.”

In review jurisdiction, the discretion exercised by a Court should not be lightly interfered. The imposition of cost is the foundation for expeditious justice and promote smart legal system that enhances access to justice by entertaining genuine claims. The purpose of cost at one level is to be compensate the successful party for the expenses incurred to which he has been subject and at another level to be an effective tool to purge the legal system of frivolous, vexatious and speculative claims and defences. This Court has ample jurisdiction and inherent power to impose cost if the facts and circumstances of the case necessitate the making of such an order to secure the ends of justice or prevent the abuse of the process of the court. While imposing cost, in paragraph No.4 of the impugned order dated 14.6.2021 learned single Judge in Chambers record cogent reasons as follows:-

“Admittedly, the petitioner who is nephew of the respondent No.2 Mst. Rabia Bibi filed suit for declaration against respondent No.2 /defendant Mst. Rabia Bibi on the basis of an oral gift. Respondent No.2/ defendant Mst. Rabia Bibi contested the suit with the stance that mother of the petitioner have dragged respondent in frivolous litigation since 1990. The suit of the petitioner’s mother titled as *Qaisar*

***Mushtaq etc. Vs. Tasleem Kousar* was decided by this Court on 24.5.2005. Against the said judgment, petitioner's mother filed CPLA No.2122/2025 which was dismissed by the Hon'ble Supreme Court of Pakistan in the year 2007. Learned counsel for the respondents produced copy of suit for declaration titled as *Faraz Ahmad etc. Vs. Rabia Bibi etc.* in respect of the same property which was dismissed as withdrawn vide order dated 17.9.2016. Copy of suit for declaration filed by the present petitioner Faraz Ahmad etc. was dismissed as withdrawn vide order dated 13.3.2017. In suit for specific performance she categorically denied any oral gift in favour of the petitioner. The petitioner has no prima facie case, as such, the balance of convenience and irreparable loss do not tilt in his favour as enunciated under Order XXXIX Rules 1 & 2 of CPC i.e. existence and irreparable loss or injury, as such, the learned Courts below have rightly turned down the request for grant of interim injunction of the petitioner. Reliance is placed on the cases titled as *Mian Muhammad Latif Vs. Province of West Pakistan through the Deputy Commissioner, Khairpur & Another (PLD 1970 SC 180) & Amtul Batool and another Vs. Qamar Sultana (PLD 1980 Lahore 647).*”**

Past conduct may be ruminated to assess the seriousness or non-seriousness of a party in the

litigation and due to any past reckless conduct, the Court may impose costs as held in Faryal Arif Latif Vs. Arif Latif (2025 SCMR 395) and Khalid Pervaiz Vs. Samina and others (2024 SCMR 142) wherein it has been held as follows:-

“There was no justification to assail the decision of the High Court, which was in accordance with the law. Therefore, leave to appeal is declined and this petition is dismissed. Imposing sufficient costs may have had the salutary effect to make the petitioner act reasonably. Courts should not hesitate in imposing costs, and compensatory costs too when required.”

8. The august Supreme Court of Pakistan while dealing with the case of Zakir Mehmood Vs. Secretary, Ministry of defence (D.P), Pakistan Secretariat, Rawalpindi and others (2023 SCMR 960) on imposition of cost held:-

“The imposition of these costs plays a crucial role in promoting fairness, deterring frivolous lawsuits, encouraging settlement, and fostering efficient use of resources: (i) promoting fairness: imposing costs in litigation helps to create a level playing field for both plaintiffs and defendants. By requiring both parties to bear the financial burden of litigation, the system encourages parties to consider the merits of their case before initiating legal action. This helps to ensure that only those with legitimate grievances pursue legal recourse, reducing the possibility of abuse; (ii) deterring frivolous lawsuits: imposing costs can discourage parties from filing baseless or frivolous claims, as the risk of incurring significant financial losses may outweigh any potential gains. This helps to protect defendants from having to defend themselves against meritless claims, reducing strain on the court system and preserving judicial resources; (iii) encouraging settlement: when parties are aware of the potential costs associated

with litigation, they may be more inclined to engage in settlement negotiations or alternative dispute resolution methods. This can result in more efficient resolution of disputes, lower costs for all involved, and a reduced burden on the court system; (iv) fostering efficient use of resources: imposing costs in litigation incentivizes parties to focus on the most relevant and important aspects of their case, as both parties will want to minimize their expenses. This can lead to more efficient use of legal resources, including court time and the expertise of legal professionals, and may result in more focused and streamlined proceedings. The practice of imposing costs would thus cleanse the court dockets of frivolous and vexatious litigation, encourage expeditious dispensation of justice, and promote a smart legal system that enhances access to justice by taking up and deciding genuine cases in the shortest possible timeframe.”

9. We are not interfering in the cost imposed in impugned order. A review application has a limited purpose and cannot be allowed to be an appeal in disguise. The power of review is not to be confused with power of an Appellate Court. Learned counsel for the applicant has failed to point out any of the patent error or mistake apparent on the face of the record in terms of mandatory requirement of Section 114 and Order XLVII CPC.

10. The scope of review is very limited one which can be exercised sparingly and only in exceptional cases in which some important aspect of the matter escaped notice of the Court or was not considered and as such error was apparent on the face of the judgment/order under review. Relying on

the case of “Daewoo Corporation Vs. Zila Council, Jhang and 2 others” (2004 SCMR 1213), wherein it has been held as under:

“It is well-settled by now that "a review application is not competent where neither any new and important matter or evidence has been discovered nor is any mistake or error apparent on the face of the record. Such error may be an error of fact or of law but it must be self-evident and floating on surface and not requiring any elaborate discussion or process of ratiocination". Master Tahilram v. Lilaram 1970 SCMR 622, Abdul Khaliq Qureshi v. Chief Settlement and Rehabilitation Commissioner 1968 SCMR 800, Rehmatullah v. Abdul Majid 1968 SCMR 838, Hassan Din v. Claims Commissioner, Lahore 1968 SCMR 1047 (2), Qamar Din v. Maula Bukhsh 1968 SCMR 1042(1), Muhammad Akram v. State 1970 SCMR 418 and Nawab Bibi v. Hamida Begum 1968 SCMR 104. There is no cavil with the proposition that "if judgment or finding, although suffering from an erroneous assumption of facts, is sustainable on other grounds available on record, review is not justifiable notwithstanding error being apparent on the face of the record". Zulfiqar Ali Bhutto v. State 1979 SCMR 427."

There is no patent error or a mistake floating on the surface of record which has caused sheer illegality and injustice and no occasion is made out to re-adjudicate upon it. The Apex Court in the case of Sh. Mehdi Hassan Vs. Province of Punjab through Member, Board of Revenue and 5 others (2007 SCMR 755), held as under:-

“This is settled law that the points already raised and considered before the Court, cannot be re-agitated in review jurisdiction which is confined to the extent of patent error or a mistake floating on the face of record which if

not corrected may perpetuate illegality and injustice. The mere fact that another view of the matter was possible or the conclusion drawn in the judgment was wrong, would not be a valid ground to review the judgment unless it is shown that the Court has failed to consider an important question of law.”

Hence, the Court while hearing review application could not sit as court of appeal.

Relying on the case of Haji Muhammad Boota and others Vs. Member (Revenue) BOR and others, (2010 SCMR 1049). It is settled law that the points already raised and considered before the court cannot be re-agitated in review jurisdiction which is confined to the extent of patent error or mistake floating on the face of the record. The learned counsel for the applicant has failed to point out any of the patent error or mistake floating on the face of the record and the sufficient cause to interfere with the impugned order, hence the same is upheld.

11. As a sequel of above discussion, instant review application being devoid of merit, stands dismissed.

(Abid Hussain Chattha) (Malik Muhammad Awais Khalid)
Judge Judge

Approved for reporting

Judge

Judge